

26IWUD01147 26IWUD01147

County: los-angeles

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Case Number: 26IWUD01147 Hearing Date: September 1, 2026 Dept: 8

Tentative:

The court DENIES the Defendants' motion to quash service of the complaint and summons. Under Evidence Code section 647, the return of a registered "process server . . . establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (See *Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059-1060.) "As explained in Evidence Code section 604, '[t]he effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.'" (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1428.)

In this case the proof of service shows a registered process server effected substitute service on the Defendants on July 31, 2026. According to the proof of service, the process server left the complaint, summons, and related documents with "Sky 'doe' (occupant) blk female, 20s, blk hair, brw eyes, 5'0, 180lb." The proof of service also states the process server mailed the documents on the same day. Finally, the proof of service includes the process server's declaration of diligence in which he attested that he attempted personal service on two prior dates before effecting substitute service on July 31, 2026.

The Defendants make only conclusory arguments stating that the summons and complaint "were not left with a competent adult at Defendant's residence or usual place of business" and "were not mailed as required." In light of the registered process server's return, the Defendant was required to come forth with evidence beyond such conclusory statements to overcome the presumption under Evidence Code section 647. (See *Palm Property Investments, LLC v. Yadegar*, *supra*, 194 Cal.App.4th at p. 1428.) The Defendants also argue the process server did not demonstrate due diligence before serving them by substitute service, but he made two attempts on different dates before resorting to substitute service. That was sufficient. (See *Board of Trustees of Leland Stanford Junior University v. Ham* (2013) 216 Cal.App.4th 330, 337 [to avail oneself of substituted service under Code of Civil Procedure section 415.20, two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as reasonable diligence].)

The court denies the Defendants' motion to quash and orders Defendants to file a responsive pleading within five days' notice of this ruling.